MASTER PHOTOGRAPHY SERVICES AGREEMENT

Draft for review — New York law. This template is not legal advice. Have New York counsel review before signature, especially the cancellation, equipment-damage, and liability provisions.

Effective Date: 2026-10-28

Photographer: Example Photographer
Address: New York, NY
Email: hello@example.com

Client: Example Client LLC
Address: New York, NY
Authorized Representative: Client Rep / Producer
Email: client@example.com

The Photographer and Client are each a “Party” and together the “Parties.”

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1. Scope and Booking Confirmations

1.1 Services. Photographer will provide photography services described in Booking Confirmations accepted by both Parties. Each Booking Confirmation will identify the event, location, schedule, coverage duration, scope, pricing, and any assignment-specific requirements.

1.2 Incorporation. Each accepted Booking Confirmation is incorporated into and governed by this Agreement. This Agreement applies to future accepted Booking Confirmations until terminated or replaced in writing.

1.3 Priority. If a Booking Confirmation conflicts with this Agreement, this Agreement controls unless the Booking Confirmation expressly identifies the section being changed and both Parties accept that change in writing.

1.4 Independent Contractor. Photographer acts as an independent contractor, controls professional methods and equipment, and is not Client's employee or agent.

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2. Fees, Invoices, and Payment

2.1 Fees. Each Booking Confirmation specifies the base fee, included services, coverage hours, applicable overtime rate, and approved expenses. Unless stated otherwise, the base fee includes image selection, standard editing, and digital delivery.

2.2 Invoice Reference. Invoices will reference the applicable Booking Confirmation. Invoices document amounts due; they do not unilaterally change an accepted Booking Confirmation or this Agreement.

2.3 Default Payment Deadline. Payment is due within fifteen (15) calendar days after the invoice date (Net 15), unless the Parties mutually agree otherwise in writing.

2.4 Documented Changes. Any alternative payment schedule must be confirmed by authorized representatives of both Parties in the Booking Confirmation or written correspondence, including email. A unilateral term on a purchase order or invoice does not change Net 15.

2.5 Disputed Charges. Client will notify Photographer of a disputed amount and the reason for the dispute within ten (10) calendar days after receiving the invoice. The Parties will work in good faith to resolve it; undisputed amounts remain due on time.

2.6 Additional Fees. Overtime, advanced retouching, travel, rentals, assistants, and other out-of-scope expenses require Client's advance written authorization and will be billed at agreed rates.

2.7 License Activation. The licenses in Sections 6 and 7 become effective after full payment for the applicable Booking Confirmation. Before payment, Client may privately review delivered images but may not publish or distribute them without Photographer's written consent.

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3. Deliverables and Editing

3.1 Deliverables. Photographer will provide a curated selection of professionally edited, high-resolution JPEG photographs via an online gallery or agreed electronic delivery method.

3.2 Professional Selection. Photographer determines which images meet professional and technical standards. No fixed number of photographs is guaranteed unless expressly specified in the Booking Confirmation.

3.3 Standard Editing. Included post-processing comprises culling, exposure, white balance, color and tonal adjustments, cropping, and straightening at Photographer's discretion. Extensive skin retouching, compositing, object removal, background replacement, and similar alterations are excluded unless separately agreed.

3.4 Event Conditions. Results depend on access, lighting, schedules, subject cooperation, and other conditions. Photographer does not guarantee every individual, activity, or moment will be captured unless specific deliverables are expressly agreed.

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4. Delivery and Storage

4.1 Deadline. Unless a Booking Confirmation specifies otherwise, Photographer will deliver edited images within ten (10) business days after the assignment. “Business day” means Monday through Friday excluding U.S. federal holidays.

4.2 Delay Notice. Photographer will promptly notify Client of a reasonably anticipated delay, its cause, and a revised estimated delivery date.

4.3 Gallery Access. Downloads will remain available for at least thirty (30) calendar days after delivery. Client is responsible for downloading and backing up final files.

4.4 Expedited Delivery. Rush delivery requires mutual written agreement and may involve an additional approved fee.

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5. Copyright and Ownership

5.1 Photographer Copyright. Photographer retains copyright and other intellectual-property rights in photographs created under this Agreement. Payment does not transfer copyright.

5.2 No Work Made for Hire or Assignment. The Parties do not intend the photographs to be works made for hire; no copyright assignment is made under this Agreement. Any transfer of copyright requires a separate signed written instrument.

5.3 Limited Rights. Client and authorized individuals receive only the permissions expressly granted below.

6. Client License

6.1 Grant. Upon full payment, Photographer grants Client a perpetual, worldwide, non-exclusive, royalty-free license to reproduce, display, distribute, and use delivered photographs for lawful corporate and business purposes, including websites, social media, advertising, marketing, public relations, recruiting, internal communications, presentations, publications, and event recaps.

6.2 Service Providers. Client may provide photographs to employees, representatives, agencies, vendors, and contractors acting on Client's behalf to carry out permitted uses, but those recipients acquire no independent right to sell or license the photographs.

6.3 Restrictions. Client may not sell the photographs or grant independent commercial sublicenses to unrelated third parties without Photographer's prior written consent. Client may not falsely claim copyright ownership.

6.4 Other Rights. This copyright license does not itself grant rights to another person's likeness, name, trademarks, confidential information, or other third-party interests.

7. Individual Personal and Professional Use

7.1 Authorized Individuals. “Authorized Individuals” includes Client's employees, officers, directors, representatives, contractors, invited speakers, and event participants depicted in delivered photographs.

7.2 Direct License. Upon full payment, Photographer directly grants each Authorized Individual a perpetual, worldwide, non-exclusive, royalty-free license to use and share delivered photographs depicting that individual for lawful personal and professional self-presentation and noncommercial sharing. These individuals are intended beneficiaries of this limited permission.

7.3 Examples. Permitted uses include profile pictures, professional networking profiles, biographies, résumés, personal websites, professional portfolios, and posts shared with colleagues, friends, and family.

7.4 Conditions. Individual use must comply with Client's applicable policies and confidentiality requirements and with applicable privacy, publicity, and other laws. No individual may sell, sublicense, or use the photographs in unrelated commercial advertising without Photographer's prior written consent.

7.5 Attribution. Credit to Photographer is appreciated but not required for permitted individual uses.

8. Photographer Portfolio and Promotional Use

8.1 Proposed Images. Photographer may use selected images for Photographer's portfolio, website, social media, and self-promotion, subject to the review process and legal restrictions below.

8.2 Submission. Before publication, Photographer will send the specific proposed images to Client's designated representative and clearly state the five-business-day review deadline.

8.3 Review and Objections. Client has five (5) business days after receipt to identify, in writing, specific images or subject matter it objects to on confidentiality, privacy, contractual, or reasonable business grounds. Photographer will not publish images subject to timely objections without later written agreement.

8.4 No Response. If Client does not object within the review period, the submitted images are deemed approved **by Client** for Photographer's stated promotional purposes. This approval does not replace consent or releases required from depicted individuals or other rights holders.

8.5 Confidentiality and Endorsement. Photographer will not knowingly publish trade secrets, proprietary or confidential nonpublic information, or imply Client or attendee endorsement without authorization. Previously approved images may remain displayed unless continued display would violate law or another binding obligation.

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9. RAW Files and Working Materials

9.1 Exclusions. RAW files, unedited or rejected images, catalogs, presets, intermediate exports, editing projects, and working files are not included in standard deliverables and remain Photographer's property.

9.2 Optional Release. Provision of excluded materials is at Photographer's discretion and requires separate written terms and any agreed fee.

9.3 Retention. Photographer will exercise reasonable care during capture, processing, and delivery but does not guarantee indefinite retention of source or final files. Client must maintain backups after delivery.

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10. Overtime and Changes

10.1 Coverage. The Booking Confirmation sets coverage times and duration.

10.2 Overtime. Additional coverage requires Client authorization and is charged at the rate stated in the Booking Confirmation.

10.3 Changes. Material changes to schedule, deliverables, staffing, or scope require written mutual confirmation, including email from authorized representatives.

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11. Cancellation and Rescheduling

11.1 Client Cancellation. Client may cancel by written notice. Unless an accepted Booking Confirmation specifies otherwise, cancellation charges are: (a) seven (7) or more calendar days before the event: no fee; (b) three (3) to six (6) days before: 25% of the base photography fee; (c) fewer than three (3) days before: 50% of the base photography fee. These amounts are intended as reasonable estimates of booking-related loss, not penalties, and remain subject to applicable law.

11.2 Rescheduling. Rescheduling is subject to Photographer's availability and written agreement. If no replacement date is agreed, cancellation terms apply unless the Parties agree otherwise.

11.3 Photographer Cancellation. If Photographer cancels for a reason within Photographer's reasonable control, Photographer will promptly notify Client and refund amounts paid for unperformed services. Any substitute photographer requires Client's approval.

11.4 Force Majeure. Force majeure is addressed in Section 14.2; this section does not impose cancellation charges contrary to that provision.

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12. Client Cooperation

12.1 Access and Priorities. Client will arrange reasonable venue access and identify key participants, activities, restrictions, and photographic priorities in a timely manner.

12.2 Event Notice and Releases. Client is responsible for event notices and permissions or releases required for Client's intended uses of the photographs. Photographer remains responsible for additional permissions legally required for Photographer's separate promotional uses.

13. Equipment Ownership and Damage

13.1 Ownership. Photographer owns or lawfully controls the equipment and materials Photographer supplies.

13.2 Ordinary Costs. Photographer bears depreciation, ordinary wear and tear, maintenance, normal replacement, and other ordinary costs of equipment ownership and use.

13.3 Photographer-Caused Damage. Photographer bears costs of damage to Photographer's equipment caused by Photographer's own actions, negligence, or improper handling.

13.4 Damage Caused by Others. Photographer does not automatically assume responsibility for equipment loss or damage caused by the negligence, recklessness, or intentional acts of Client or third parties. Liability is determined under applicable law. Client is not automatically liable for independent attendees solely because an incident occurred at Client's event.

13.5 Client-Caused Damage. To the extent permitted by law, Client is responsible for direct physical damage to Photographer's equipment caused by Client's negligence or willful misconduct, including acts of employees or agents for whom Client is legally responsible.

13.6 Insurance. Photographer does not promise to maintain equipment insurance unless expressly agreed in writing. This section does not represent that Photographer carries general liability insurance or override separate venue or Client insurance requirements accepted by Photographer.

13.7 Care. Photographer will take reasonable precautions in handling, securing, and operating equipment.

14. Professional Responsibility and Limitation of Liability

14.1 Professional Care. Photographer agrees to perform the services with reasonable professional care, diligence, and skill, and to make reasonable efforts to fulfill the agreed scope of work and deliver the photographs in accordance with this Agreement.

14.2 Force Majeure. Neither Party is liable for delay or nonperformance caused by circumstances beyond its reasonable control, including serious illness, emergency, fire, natural disaster, severe weather, pandemic, government restrictions, or labor disruption. The affected Party will give prompt notice and reasonably mitigate the effects. Affected performance obligations are suspended for the period reasonably prevented. If the event continues more than sixty (60) calendar days, either Party may terminate the affected Booking Confirmation in writing; Photographer will refund payments for unperformed services, less amounts properly earned and expenses expressly approved by Client.

14.3 Unforeseen Circumstances and Delivery. Photographer shall not be responsible for delays, missed photographs, or incomplete coverage resulting from circumstances beyond Photographer's reasonable control, including venue restrictions, interference by event participants, external service interruptions, or technical malfunctions that reasonable professional precautions could not have prevented. Photographer shall take reasonable precautions to prevent foreseeable problems, exercise reasonable care in capturing, storing, editing, and delivering images, and make reasonable efforts to mitigate problems and recover affected files. This provision does not excuse Photographer's negligence, willful misconduct, or other liability that cannot lawfully be excluded.

14.4 Limitation of Liability. To the fullest extent permitted by applicable law, Photographer's total aggregate liability arising out of or relating to an assignment shall not exceed the total fees paid or payable under the applicable Booking Confirmation. This limitation does not apply to gross negligence, willful misconduct, or any liability that cannot lawfully be limited.

14.5 Equipment Responsibility. The allocation of equipment ownership, maintenance costs, and responsibility for equipment damage is set out in Section 13. Nothing in this Section 14 makes Client automatically responsible for damage caused by unrelated event attendees or third parties.

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15. General Terms

15.1 Governing Law. New York State law governs this Agreement and all Booking Confirmations, without regard to conflicts-of-law rules.

15.2 Written Amendments. Amendments must be accepted in writing by both Parties. Email correspondence from authorized representatives is sufficient unless a signed amendment is expressly required.

15.3 Entire Agreement. This Agreement, accepted Booking Confirmations, and expressly incorporated amendments are the complete agreement regarding covered services.

15.4 Severability. If a provision is unenforceable, the remaining provisions remain effective to the extent permitted by law.

15.5 No Waiver. Failure to enforce a term does not waive future enforcement.

15.6 Electronic Signatures. Electronic signatures and counterparts are acceptable to the extent permitted by law.

15.7 Notices. Notices must be sent in writing to the email addresses listed above or subsequently designated in writing.

15.8 Termination for Future Work. Either Party may terminate this master relationship for future assignments by written notice. Previously accepted Booking Confirmations remain governed by this Agreement unless separately terminated or amended.

15.9 Survival. Accrued payment obligations, copyright ownership, activated licenses, confidentiality restrictions, liability limitations, and other terms intended by their nature to survive will survive termination as applicable.

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16. Signatures

By signing, the Parties agree to this Master Photography Services Agreement.

Photographer
Legal Name: _____
Signature: _____
Date: _____

Client
Legal Entity: _____
Authorized Representative / Title: _____
Signature: _____
Date: _____